

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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KRISTAL GODING,

Plaintiff,

-against-

Plaintiff designates
Kings County as the
place of trial

Basis of venue is
county of occurrence

SUMMONS

THE CITY OF NEW YORK,
SGT. LARRY MEYERS and
C.O. SADIQUE COTTLEHADDAWAY,

Defendants.

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To the above-named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
November 17, 2023

SIVIN, MILLER & ROCHE, LLP

By Edward Sivin
Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
KRISTAL GODING,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
SGT. LARRY MEYERS and
C.O. SADIQUE COTTLEHADDAWAY,

Defendants.

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Plaintiff, by her attorneys SIVIN, MILLER & ROCHE, LLP, as and for her
complaint herein, alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was a resident of the County of Kings, City and State of New York.
2. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That prior to the institution of this action and within ninety (90) days from the dates when the causes of action accrued herein, a notice of claim and intention to sue was duly served upon and filed with the defendants on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

4. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the “NYPD”).

5. That at all times herein mentioned, defendant Sgt. Frank Meyers (hereinafter “Meyers”) was police sergeant employed by the NYPD.

6. That at all times herein mentioned, Meyers was acting within the course and scope of his employment with the NYPD.

7. That at all times herein mentioned, Meyers was acting under color of state law.

8. That at all times herein mentioned, defendant P.O. Sadique Cottlehaddaway (hereinafter “Cottlehaddaway”) was a police officer employed by the NYPD.

9. That at all times herein mentioned, Cottlehaddaway was acting within the course and scope of his employment with the NYPD.

10. That at all times herein mentioned, Cottlehaddaway was acting under color of state law.

11. That at all times herein mentioned, any additional officers referenced in this complaint were acting within the course and scope of their employment with the NYPD and under color of state law.

THE FACTS

12. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

13. That on or about September 5, 2022, at or around 328 Sterling Place, Brooklyn, NY, NYPD officers, including but not limited to Meyers and Cottlehaddaway (hereinafter referred to collectively as “the officers”), forcibly seized and used excessive force against plaintiff without justification or provocation.

14. That the use of force included, but was not limited to, slamming plaintiff to the ground, striking plaintiff in the head, choking plaintiff, and forcibly applying handcuffs to plaintiff in an excessively tight manner.

15. That after the officers used force against plaintiff, they formally placed her under arrest and imprisoned plaintiff and/or caused her be imprisoned at various locations, including but not limited to a police precinct and at Central Booking.

16. That during the period of plaintiff's detention, defendants continued using force against plaintiff that was unjustified, excessive, and unnecessary under the circumstances.

17. That the additional force used against plaintiff during her detention included, among other things, defendants' refusal to loosen plaintiff's handcuffs, despite the fact that plaintiff complained numerous times to defendants that the handcuffs were too tight and were causing her severe pain.

18. That the arrest and imprisonment of plaintiff was effectuated without a warrant and without probable cause to believe that Plaintiff had committed or was about to commit any crime or criminal violation.

19. That on or about September 5, 2022, defendants also initiated and/or caused to be initiated a criminal prosecution of plaintiff, charging plaintiff with crimes of which she was innocent and of which defendants knew plaintiff to be innocent.

20. That in support of the criminal prosecution, Cottlehaddaway executed a Criminal Court Complaint in which he knowingly made false accusations against plaintiff.

21. That in support of the criminal prosecution, Meyers and Cottlehaddaway also knowingly made false statements to fellow officers and to the Office of the District Attorney.

22. That among the false statements made by defendants were statements that

plaintiff was among a group of people who were playing loud music, that plaintiff had attempted to interfere in the arrest of an individual whom Meyers alleged had assaulted him, and that plaintiff grabbed and pushed Meyers.

23. That the aforementioned false statements by Meyers and Cottlehaddaway constituted material evidence in the prosecution of plaintiff, and evidence that was likely to influence a judge's or jury's decision on plaintiff's guilt or innocence.

24. That plaintiff had not committed the crimes with which she was charged, and defendants knew that plaintiff had not engaged in and that they did not have probable cause or reasonable suspicion to believe that plaintiff had engaged in such conduct.

25. That as a consequence of this prosecution and false statements, plaintiff was required to attend court on several occasions and was otherwise restricted in her liberty and travel.

26. That on or about December 6, 2022, all criminal charges against plaintiff were dismissed and the criminal prosecution terminated favorably to plaintiff.

27. That prior to the events alleged herein, Meyers had engaged in a years-long, persistent course of misconduct while on duty, involving numerous incidents of using excessive force and otherwise abusing his authority against members of the public.

28. That the City had actual notice of Meyers' course of misconduct through, among other things, numerous lawsuits filed against Meyers and the City alleging civil rights violations by Meyers, and numerous complaints filed against Meyers with the Civilian Complaint Review Board.

29. That despite its knowledge of Meyers' course of misconduct, the City not only retained Meyers in its employ, but also actually promoted Meyers, first to the rank of lieutenant and then to the rank of captain, thus essentially endorsing and condoning Meyers' course of misconduct.

30. That while Meyers remained in the City's employ, and in the face of this pattern of misconduct, the City took no steps to provide any additional training or supervision of Meyers.

31. That the City's failure to take any action in response to Meyers' course of misconduct, and its tacit approval and condonation of that course of misconduct, constituted a deliberate indifference to the safety and needs of the public at large and to Meyers' persistent violations of civil rights.

32. That each of the defendants herein observed the unlawful conduct and actions of his fellow officers, had opportunities to intervene to prevent and/or stop the unlawful conduct, and failed and refused to intervene to prevent and/or stop the unlawful conduct.

33. That the actions and conduct of defendants herein was intentional and malicious.

34. That as a result of the foregoing, plaintiff sustained multiple injuries, including but not limited to a fracture and tearing of ligaments in her left wrist, and plaintiff further suffered and continues to suffer physical, emotional, and psychological injuries, loss of liberty, embarrassment, humiliation, and damage to her name and reputation.

35. That as a further consequence of defendants' actions, plaintiff incurred and continues to incur economic loss, including but not limited to being unable to continue her full-time employment, and incurring hospital and medical bills.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Assault and Battery Under New York State Law)

36. That the aforesaid actions of the officers, including but not limited to Meyers and Cottlehaddaway, constitute an assault and battery upon plaintiff, for which these officers are liable under New York State law and for which the City is vicariously liable under the doctrine of

respondeat superior.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS

(Unreasonable Seizure Under NYC Administrative Code § 8-802)

37. That the aforesaid actions of the officers, including but not limited to Meyers and Cottlehaddaway, including the unlawful and unreasonable seizure of and the use of excessive force against plaintiff, the arrest and prosecution of plaintiff, and the failure to intervene, entitle plaintiff to recover damages from defendants pursuant to NYC Administrative Code § 8-802.

THIRD CAUSE OF ACTION AGAINST MEYERS and COTTLEHADDAWAY

(42 USC § 1983 Claim Arising Out of the Unreasonable Seizure and Use of Excessive Force)

38. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

39. That the aforesaid seizure and use of excessive force, and the failure to intervene to prevent same, constitute illegal seizures and deprivation of liberty of plaintiff in violation of rights guaranteed to plaintiff under the Fourth Amendment to the US Constitution, and entitle plaintiff to recover damages pursuant to 42 USC § 1983.

FOURTH CAUSE OF ACTION AGAINST ALL DEFENDANTS

(False Arrest/False Imprisonment Under New York State Law)

40. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

41. That the aforesaid actions of the officers, including but not limited to Meyers and Cottlehaddaway, constitute a false arrest and false imprisonment of plaintiff, for which these officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION AGAINST MEYERS and COTTLEHADDAWAY
(42 USC § 1983 Claim Arising Out of False Arrest/False Imprisonment)

42. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

43. That the aforesaid false arrest and false imprisonment of plaintiff constitute illegal seizures and deprivation of liberty of plaintiff in violation of rights guaranteed to plaintiff under the Fourth Amendment to the US Constitution, and entitle plaintiff to recover damages pursuant to 42 USC § 1983.

SIXTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution Under New York State Law)

44. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

45. That the aforesaid actions of the officers, including but not limited to Meyers and Cattlehaddaway, constitute a malicious prosecution of plaintiff, for which these officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION AGAINST MEYERS and COTTLEHADDAWAY
(42 USC § 1983 Claim Arising Out of Malicious Prosecution)

46. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

47. That the aforesaid malicious prosecution of plaintiff constitutes an illegal seizure and deprivation of liberty of plaintiff in violation of rights guaranteed to plaintiff under the Fourth Amendment to the US Constitution, and entitles plaintiff to recover damages pursuant to 42 USC § 1983.

SEVENTH CAUSE OF ACTION AGAINST MEYERS and COTTLEHADDAWAY
(42 USC § 1983 Claim Based on Denial of Right to Fair Trial)

48. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

49. That the aforesaid actions by Meyers and Cottlehaddaway constitute a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

EIGHTH CAUSE OF ACTION AGAINST THE CITY
(Negligent Hiring, Training, Supervision, and Retention)

50. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

51. That the aforesaid actions and inaction by the City in response to Meyers' persistent course of misconduct constitute negligence in the City's hiring, training, supervision, and retention of Meyers, for which the City is liable under New York State law.

NINTH CAUSE OF ACTION AGAINST THE CITY
(“Monell” Claim)

52. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

53. That the City's actions and inaction in response to Meyers' persistent course of misconduct constitute a deliberate indifference to violations of constitutional rights, and entitle plaintiff to recover damages from the City pursuant to *Monell v. Dep't of Soc. Servs.*, 436 U.S. 658 (1978).

54. That all of the foregoing causes of action fall within one or more of the

exceptions set forth in CPLR § 1602 with respect to joint and several liability.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against Meyers and Cottlehaddaway, and attorney's fees against all defendants pursuant to 42 USC § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
November 17, 2023

Yours, etc.

SIVIN, MILLER & ROCHE, LLP

By Edward Sivin

Edward Sivin

Attorneys for plaintiff

20 Vesey St., Suite 1400

New York, NY 10007

(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
November 17, 2023

Edward Sivin

EDWARD SIVIN